IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

H.M.O.P.NO. OF 2024

Mr.S.Prasanna Kumar --- Petitioner No.1

Mr.S.Mythili --- Petitioner No.2

-Vs-

- Nil - --- Respondent

PETITION FILED UNDER SECTION 13 B OF THE HINDU MARRIAGE ACT 1955

I.PETITIONER NO.1:

Mr.S.Prasanna Kumar, S/o.Sivaraman, Hindu, aged about 39 years, residing at No.4/42, Chellammal Nagar, Subbanaiken Pudur, Chinnavedampatti Post, Coimbatore – 641 049.

The address for service of the Petitioner No.1 is same as above and care of their Counsel **Mr.S.Chandrasekaran M.A., B.L., DLL.,** Advocate, Coimbatore 641 018.

II.PETITIONER NO.2:

S.Mythili, W/o. Prasannakumar, Hindu, aged about 34 years, residing at 39-C, Tansa Nagar, Pommanampalayam, Bharathiyar University Post, Coimbatore – 641 046.

The address for service of the Petitioner No.1 is same as above and care of their Counsel **Mr.R.Arunachallam, B.Sc., B.L.,** Advocate, Coimbatore 641 018.

III. RESPONDENT:

-NIL-

III.The petitioners beg to submit as follows:

1. That the petitioners are Hindus by religion and the marriage between them took place on 22.11.2015 at "KC Thirumana Mandapam", Vadavalli, Pommanampalayam, Coimbatore as per Hindu rites and rituals in the presence of

family members, friends, and relatives of both the petitioners. The petitioners got a daughter namely Shivani born out of the wedlock.

2. The petitioners submit that few months after the birth of their daughter, there was no cordial relationship between them. The petitioner nos. 1 and 2 tried their level best to solve the misunderstandings between them and in fact all their attempts were proved futile. There was no consensus of mind between the petitioners. The petitioners realized there was no love or affection between them and they were unable to adjust and tolerate with each other in spite of the advice of elders, friends and well-wishers. While so, after losing all hope, the petitioners separated each other and living separately ever since 06.01.2022 and the minor daughter is living with the 2nd petitioner.

3. The petitioners submit that ever since the date of separation on 06.01.2022, the mediators of both families also made all the arrangements and thereby several meetings took place for amicable settlement to solve their misunderstandings and despite it, all their attempts went in vain. The petitioners submit that there is no chance for reunion between them and there is no possibility of uniting and living together ever again. Hence, the petitioners are left with no other option except to approach this Hon'ble Court seeking relief of dissolution of the marriage by a decree of divorce by mutual consent, that took place on 22.11.2015 or else the petitioners will be put to much hardship.

4. The petitioners submit that they can lead their life in future peacefully if this Hon'ble Court grants divorce to them, since all possible efforts for reunion had already been taken place and the same has failed miserably and thus, there is absolutely no possibility of being reunited. Further, the articles including jewels, utensils and other Sridhanas presented by parents of the 2nd petitioner were returned by the 1st petitioner to the 2nd petitioner. So also, the jewels presented by 1st petitioner to 2nd petitioner were also returned by 2nd petitioner to the 1st petitioner. Thus, at present there is no claim against each other. The 2nd petitioner is hereby waiving her right of maintenance for the future of her child and herself. However, the custody of child shall be with her Mother viz., the 2nd petitioner herein and so also, the 1st petitioner may not have right to claim custody of the child as mutually agreed between the petitioners.

5. The petitioners submit that there is no collusion between them in filing the present petition. The petitioners further submit that they are living separately for more than 2 years before the date of filling this application.

6. The petitioners submit that they had mutually agreed to dissolve the marriage and the decision for mutual divorce was taken by their own free decision, voluntarily and of their own accord and not by any undue influence, threat, fear or coercion.

7. The petitioners submit that there are no other petitions of any similar nature filed or pending before this Hon'ble Court or any other courts.

8. The cause of action for this petition arose on 22.11.2015 , when the marriage between them took place at "KC Thirumana Mandapam", Vadavalli, Pommanampalayam, Coimbatore , on subsequent dates, when they were living together in petitioner's house No.4/42, Chellammal Nagar, Subbanaiken Pudur, Chinnavedampatti Post, Coimbatore – 641 049, on subsequent dates, when misunderstanding arose between them within few years of marriage, on 06.01.2022, when they got separated and on subsequent dates when no fruitful result arrived despite several meetings for an amicable settlements by family and friends of both petitioners and all this cause of action arose at Coimbatore also which is within the jurisdiction of this Hon'ble Court.

9. The petitioners submit that the marriage between them took place at Coimbatore District, Tamil Nadu and both the petitioners are residing at Coimbatore. Hence this Hon'ble Court has got jurisdiction to entertain this petition.

10. A court fee of Rs. /- is paid thereon under schedule II Article 11 [1] (ii) of the Tamil Nadu Court Fees and Suit Valuation Act is paid.

11. Therefore, the petitioners pray that this Hon'ble Court may be pleased pass a decree and judgment by dissolving the marriage that took place between the petitioners on 22.11.2015 at "KC Thirumana Mandapam", Vadavalli, Pommanampalayam, Coimbatore, by a decree of mutual consent and pass such other further reliefs as this Hon'ble Court deems fit and proper according to the circumstances of the case and thus render justice.

2.

ADVOCATE FOR PETITIONERS **PETITIONERS**

VERIFICATION

We, the petitioners above named do hereby state that the facts submitted above are true and correct to the best of our knowledge and we signed this verification at Coimbatore, on the day of

1.

2.

PETITIONERS

LIST OF DOCUMENTS:

S.No.	**Date**	**Nature of Documents**	**Original/ Xerox**
1.	22.11.2015	Marriage Invitation	Original
2.		Marriage Photo	Original
3.		Aadhar card of petitioner No.1	Xerox
4.		Aadhar card of petitioner No.2	Xerox

Identified by me **ADVOCATE FOR PETITIONER**

PETITIONER NO. 1 **PETITIONER NO. 2**

ADVOCATE FOR PETITIONERS

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

H.M.O.P.NO. OF 2024

Mr.S.Prasanna Kumar
--- Petitioner No.1

Mr.S.Mythili
--- Petitioner No.2

-Vs-

-Nil -
--- Respondent

PETITION FILED UNDER SECTION 13 B OF THE HINDU MARRIAGE ACT 1955

PRE ON:

ADDRESS FOR SERVICE:
Mr.S.Chandrasekaran, M.A.,B.L.,DLL.,
Advocate,
85/12, Cherran Tower Apartments,
Govt. Arts College Road,
Coimbatore - 641 018.
93631 20899, 0422-2200337.
Mr.R.Arunachallam, B.Sc., B.L.,
(Ms.No.321/1978)
Mr.R.Rajan.,B.A.B.L.,
(Ms.No.655/1987)
Advocates,
No.105, I Floor, Aiswarya Complex,
Gopalapuram, 1st Street,
Coimbatore – 641 018.

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.S.Prasanna Kumar --- Petitioner No.1/Petitioner No.1

Mrs.S.Mythili --- Petitioner No.2/Petitioner No.2

-Vs-

- Nil - --- Respondent

-

AFFIDAVIT

We, **Mr.S.Prasanna Kumar**, S/o.Sivaraman aged about 39 years, residing at No.4/42, Chellammal Nagar, Subbanaiken Pudur, Chinnavedampatti Post, Coimbatore – 641 049 and **S.Mythili**, W/o. Prasannakumar, Hindu, aged about 34 years, residing at 39-C, Tansa Nagar, Pommanampalayam, Bharathiyar University Post, Coimbatore – 641 046, do hereby solemnly affirm and sincerely state as follows:-

1. We are the Petitioners herein and as well as petitioners in the main petition.

2. We submit that we have filed the main petition seeking a Decree of Divorce by mutual consent by dissolving the marriage that took place between us on 22.11.2015 at "KC Thirumana Mandapam", Vadavalli, Pommanampalayam, Coimbatore as per Hindu rites and rituals in the presence of family members, friends, and relatives of both the petitioners.

3. We petitioners submit that few months after the birth of their daughter, there was no cordial relationship between us. We tried our level best to solve our misunderstandings and in fact all our attempts went in vain. The well-wishers and elders of the family also advised us for an amicable Settlement to live peacefully but all their attempts are futile. Hence, we have decided to get a decree of divorce through Court of Law by mutual consent. Hence, the main petition is filed. We crave leave to refer the main petition as part and parcel of this affidavit.

4. We further submit that we have been living separately ever since 06.01.2022 and thereafter the mediators of both families also made negotiations to solve our misunderstandings and in fact, despite their attempts for mediations, all efforts are failed and thus at present there are no likely chances for reunion. As such, we have decided to get a decree of divorce by mutual consent through Court of Law and thus, the main petition is filed. We crave leave to refer the main petition as part and parcel of this affidavit. Further, the 1st petitioner hereby undertakes to waive his right of visitation over the minor daughter Shivani and the 2nd petitioner also waives her right of maintenance for her and her child's future.

5. We assure that there are no likely chances between us for reunion anymore and also we may not live peacefully if we are together under one roof. As such, it would be better for our future life if we get a divorce by mutual consent before this Honorable Court. Hence, the main petition is filed. We crave leave to refer the main petition as part and parcel of this affidavit.

6. Further, the nature of case requires assistance of legal adviser and thereby, we have engaged our counsel to represent on our behalf before this Honorable Court.

7. As such, unless we are permitted to appear and represented through our counsels Mr. S.Chandrasekaran, M.A., B.L., DLL., and Mr.R.Arunachallam, B.Sc., B.L., Advocates, Coimbatore, we will be put to irreparable loss and hardship.

Therefore, we pray that this Hon'ble Court may be pleased to permit us to appear before this Hon'ble Court through our counsels Mr.S.Chandrasekaran, M.A., B.L., DLL., and Mr.R.Arunachallam, B.Sc., B.L., Advocates, Coimbatore and pass such other reliefs.

1.

2.

Solemnly affirmed and signed **PETITIONERS**
before me at Coimbatore on

ADVOCATE, COIMBATORE

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.S.Prasanna Kumar --- Petitioner No.1/Petitioner No.1

Mrs.S.Mythili --- Petitioner No.2/Petitioner No.2

-Vs-

- Nil - --- Respondent

-

PETITION FILED UNDER SECTION 13 OF THE FAMILY COURT ACT

I.PETITIONER NO.1/PETITIONER NO.1:

Mr.S.Prasanna Kumar, S/o.Sivaraman, Hindu, aged about 39 years, residing at No.4/42, Chellammal Nagar, Subbanaiken Pudur, Chinnavedampatti Post, Coimbatore – 641 049.

The address for service of the Petitioner No.1 is same as above and care of their Counsel **Mr.S.Chandrasekaran M.A., B.L., DLL.,** Advocate, Coimbatore 641 018.

II.PETITIONER NO.2/PETITIONER NO.2:

S.Mythili, W/o. Prasannakumar, Hindu, aged about 34 years, residing at 39-C, Tansa Nagar, Pommanampalayam, Bharathiyar University Post, Coimbatore – 641 046.

The address for service of the Petitioner No.1 is same as above and care of their Counsel **Mr.R.Arunachallam, B.Sc., B.L.,** Advocate, Coimbatore 641 018.

II. RESPONDENT:

- NIL -

Therefore, for the reasons stated in the accompanying affidavit it is prayed that this Hon'ble may be pleased to permit us to appear before this Hon'ble Court through our counsels Mr.S.Chandrasekaran, M.A., B.L., DLL., and Mr.R.Arunachallam, B.Sc., B.L., Advocates, Coimbatore and pass such other reliefs.

ADVOCATE FOR PETITIONERS

IN THE COURT OF THE HON'BLE
FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024
H.M.O.P.NO. OF 2024

Mr.Prasanna Kumar
--- Petitioner No.1/
Petitioner No.1

Mrs.S.Mythili
--- Petitioner No.2/
Petitioner No.2

-Vs-

-Nil -
--- Respondent

PETITION FILED UNDER RULE 28(2) OF CIVIL RULES OF PRACTICE

PRE ON:

ADDRESS FOR SERVICE:
Mr.S.Chandrasekaran, M.A.,B.L.,DLL.,
Advocate,
85/12, Cherran Tower Apartments,
Govt. Arts College Road,
Coimbatore - 641 018.
93631 20899, 0422-2200337.
Mr.R.Arunachallam, B.Sc., B.L.,
(Ms.No.321/1978)
Mr.R.Rajan.,B.A.B.L.,
(Ms.No.655/1987)
Advocates,
No.105, I Floor, Aiswarya Complex,
Gopalapuram, 1st Street,
Coimbatore – 641 018.

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.S.Prasanna Kumar --- Petitioner No.1/Petitioner No.1

Mrs.S.Mythili --- Petitioner No.2/Petitioner No.2

-Vs-

- Nil - --- Respondent

AFFIDAVIT

We, **Mr.S.Prasanna Kumar**, S/o.Sivaraman aged about 39 years, residing at No.4/42, Chellammal Nagar, Subbanaiken Pudur, Chinnavedampatti Post, Coimbatore – 641 049 and **S.Mythili**, W/o. Prasannakumar, Hindu, aged about 34 years, residing at 39-C, Tansa Nagar, Pommanampalayam, Bharathiyar University Post, Coimbatore – 641 046, do hereby solemnly affirm and sincerely state as follows:-

1. We are the Petitioners herein and as well as petitioners in the main petition.

2. We submit that we have filed the main petition seeking a Decree of Divorce by mutual consent by dissolving the marriage that took place between us on 22.11.2015 at "KC Thirumana Mandapam", Vadavalli, Pommanampalayam, Coimbatore as per Hindu rites and rituals in the presence of family members, friends, and relatives of both the petitioners. Subsequent to the marriage, we lived together at the 1st petitioner's house at in petitioner's house No.4/42, Chellammal Nagar, Subbanaiken Pudur, Chinnavedampatti Post, Coimbatore – 641 049, on and a female child by name Shivani born out of the wedlock on 20.05.2017 at Akshaya Hospital, Thondamuthur, Coimbatore.

3. We petitioners submit that few months after the birth of their daughter, there was no cordial relationship between us. We tried our level best to solve our misunderstandings and in fact all our attempts went in vain. The well-wishers and elders of the family also advised us for an amicable Settlement to live peacefully but all their attempts are futile.

4. We further submit that we have been living separately ever since 06.01.2022 and thereafter the mediators of both families also made arrangements to solve our misunderstandings and in fact, despite their attempts for mediations, all efforts are failed and thus at present there are no likely chances for reunion. As such, we have decided to get a decree of divorce by mutual consent through Court of Law and thus, the main petition is filed. We crave leave to refer the main petition as part and parcel of this affidavit. Further, the 1st petitioner hereby undertakes to waive his right of visitation over the minor daughter Shivani and the 2nd petitioner also waives her right of maintenance for her future and her child.

5. We assure that there are no likely chances between us for reunion anymore and also we may not live peacefully if we are together under one roof. As such, it would be better for our future life if we get a divorce by mutual consent before this Hon'ble Court. Besides, there are likely chances to start a fresh independent life for both of us and, if the process in getting divorce is delayed, we may be put to trouble further. We state that if we get separated now from each other, we may have likely chance to get re-married in a short period of time.

6. As such, unless the cooling period of six months is dispensed with by this Hon'ble Court, we will be put to great loss and hardship.

Therefore, we pray that this Hon'ble Court may be pleased to pass an order by dispensing the cooling period of six months and pass such other further relief.

1.

2.

Solemnly affirmed and signed
before me at Coimbatore on

PETITIONERS

ADVOCATE, COIMBATORE.

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.S.Prasanna Kumar --- Petitioner No.1/Petitioner No.1

Mrs.S.Mythili --- Petitioner No.2/Petitioner No.2

-Vs-

- Nil - --- Respondent

PETITION FILED UNDER SECTION 13 (B)(2) OF THE HINDU MARRIAGE ACT 1955

I.PETITIONER NO.1/PETITIONER NO.1:

Mr.S.Prasanna Kumar, S/o.Sivaraman, Hindu, aged about 39 years, residing at No.4/42, Chellammal Nagar, Subbanaiken Pudur, Chinnavedampatti Post, Coimbatore – 641 049.

The address for service of the Petitioner No.1 is same as above and care of their Counsel **Mr.S.Chandrasekaran M.A., B.L., DLL.,** Advocate, Coimbatore 641 018.

II.PETITIONER NO.2/PETITIONER NO.2:

S.Mythili, W/o. Prasannakumar, Hindu, aged about 34 years, residing at 39-C, Tansa Nagar, Pommanampalayam, Bharathiyar University Post, Coimbatore – 641 046.

The address for service of the Petitioner No.1 is same as above and care of their Counsel **Mr.R.Arunachallam, B.Sc., B.L.,** Advocate, Coimbatore 641 018.

II. RESPONDENT:

- NIL -

For the reasons stated in the accompanying affidavit, the petitioners pray that this Hon'ble Court may be pleased to pass an order by dispensing the cooling period of six months and pass such other further reliefs, which this Hon'ble Court deems fit and proper according to the circumstances of the case and thus render justice.

ADVOCATE FOR PETITIONERS

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.S.Prasanna Kumar --- Petitioner No.1/Petitioner No.1

Mrs.S.Mythili --- Petitioner No.2/Petitioner No.2

-Vs-

- Nil - --- Respondent

AFFIDAVIT

We, **Mr.S.Prasanna Kumar**, S/o.Sivaraman aged about 39 years, residing at No.4/42, Chellammal Nagar, Subbanaiken Pudur, Chinnavedampatti Post, Coimbatore – 641 049 and **S.Mythili**, W/o. Prasannakumar, Hindu, aged about 34 years, residing at 39-C, Tansa Nagar, Pommanampalayam, Bharathiyar University Post, Coimbatore – 641 046, do hereby solemnly affirm and sincerely state as follows:-

1. We are the Petitioners herein and as well as petitioners in the main petition.

2. We submit that we have filed the main petition seeking a Decree of Divorce by mutual consent by dissolving the marriage that took place between us on 22.11.2015 at "KC Thirumana Mandapam", Vadavalli, Pommanampalayam, Coimbatore, as per Hindu rites and rituals in the presence of the family members, friends, and relatives of both the Petitioners. Subsequent to the marriage, we lived together at the 1st petitioner's house at in petitioner's house No.4/42, Chellammal Nagar, Subbanaiken Pudur, Chinnavedampatti Post, Coimbatore – 641 049, on and a female child by name Shivani born out of the wedlock on 20.05.2017 at Akshaya Hospital, Thondamuthur, Coimbatore.

3. We submit that ever since the date of our marriage, there was no cordial relationship between us. We tried our level best to solve our misunderstandings and in fact all our attempts went in vain. The well-wishers and elders of the family also advised us for an amicable Settlement to live peacefully but all their attempts are futile.

4. We further submit that we have been living separately ever since 06.01.2022 and thereafter the mediators of both families also made arrangements to solve our misunderstandings and in fact, despite their attempts for mediations, all efforts are failed and thus at present there are no likely chances for reunion. As such, we have decided to get a decree of divorce by mutual consent through Court of Law and thus, the main petition is filed. We crave leave to refer the main petition as part and parcel of this affidavit. Further the articles presented between us during marriage were also got exchanged by us and thus, at present no claim is against each other.

5. We assure that there are no likely chances between us for reunion anymore and also we may not live peacefully if we are together under one roof. As such, it would be better for our future life if we get a divorce by mutual consent before this Hon'ble Court. Besides, absolutely there are likely chances for our new life and if the process is delayed, we may put on trouble further. If we get now separated each other, we may have likely chances for our re-marriage in short period of time. Hence, we intend to file necessary application seeking relief to dispense with cooling period. In fact, the above case is posted for hearing for further hearing and as we now intend to settle, the hearing of above case may be advanced to any earlier date or else we will be put to hardship.

Therefore, we pray that this Hon'ble Court may be pleased to pass an order by advancing the hearing of the above case from to any earlier date and pass such other further relief.

1.

2.

Solemnly affirmed and signed **PETITIONERS**
before me at Coimbatore on

ADVOCATE, COIMBATORE.

IN THE COURT OF THE HON'BLE FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

Mr.S.Prasanna Kumar --- Petitioner No.1/Petitioner No.1

Mrs.S.Mythili --- Petitioner No.2/Petitioner No.2

-Vs-

- NIL - --- Respondent

PETITION FILED UNDER RULE 28(2) OF CIVIL RULES OF PRACTICE

I.PETITIONER NO.1/PETITIONER NO.1:

Mr.S.Prasanna Kumar, S/o.Sivaraman, Hindu, aged about 39 years, residing at No.4/42, Chellammal Nagar, Subbanaiken Pudur, Chinnavedampatti Post, Coimbatore – 641 049.

The address for service of the Petitioner No.1 is same as above and care of their Counsel **Mr.S.Chandrasekaran M.A., B.L., DLL.,** Advocate, Coimbatore 641 018.

II.PETITIONER NO.2/PETITIONER NO.2:

S.Mythili, W/o. Prasannakumar, Hindu, aged about 34 years, residing at 39-C, Tansa Nagar, Pommanampalayam, Bharathiyar University Post, Coimbatore – 641 046.

The address for service of the Petitioner No.1 is same as above and care of their Counsel **Mr.R.Arunachallam, B.Sc., B.L.,** Advocate, Coimbatore 641 018.

II. RESPONDENT:

-NIL -

For the reasons stated in the accompanying affidavit, the petitioners prays that this Hon'ble Court may be pleased to pass an order by advancing the hearing of the above case from to any earlier date and pass such other further relief, which this Hon'ble Court deems fit and proper according to the circumstances of the case and thus render justice.

ADVOCATE FOR PETITIONERS

IN THE COURT OF THE HON'BLE

FAMILY COURT OF COIMBATORE

I.A.NO. OF 2024

H.M.O.P.NO. OF 2024

AFFIDAVIT